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April 15, 2025

ENGROSSED HOUSE
BILL NO. 1738

By: Adams and Moore of the
House

and

Frix of the Senate

An Act relating to public health and safety; exempting public trust hospitals from the Oklahoma Open Meeting Act and Oklahoma Open Records Act under certain circumstances; authorizing executive sessions; providing exception related to budget information; defining term; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3310 of Title 63, unless there is created a duplication in numbering, reads as follows:

In the event a public trust hospital enters into a joint venture with or acquires an interest in a not-for-profit entity to effectuate the administration of the mission of the public trust, that entity shall not be subject to the Oklahoma Open Meeting Act and the Oklahoma Open Records Act. Any information submitted to or compiled by the public trust with respect to marketing plans,

1 financial statements, trade secrets, research concepts, methods or
2 products or any other proprietary information submitted to or
3 compiled by the trust, persons, firms, associations, partnerships,
4 agencies, corporations, institutions of higher education, nonprofit
5 research institutions, or other entities shall be confidential,
6 except to the extent that the person or entity which provided such
7 information or which is the subject of such information consents to
8 disclosure. Executive sessions may be held to discuss such
9 materials if deemed necessary by the trust. The provisions of this
10 section shall not apply to budgetary information related to
11 appropriations or the appropriations process. For purposes of this
12 section, "public trust hospital" is defined as any hospital created
13 pursuant to Section 176.1 of Title 60 of the Oklahoma Statutes or
14 Section 790.1 of Title 19 of the Oklahoma Statutes.

15 SECTION 2. This act shall become effective November 1, 2025.

16 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
17 April 15, 2025 - DO PASS
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